

This Motion is unopposed.

However, mail service was completed at an address for the Defendant (Pleasant Hill) that is different than the address where Defendant was personally served with process (Concord). There are no other court filings reflected a Pleasant Hill address for Defendant.

Thus, service is not effective.

Disposition

Plaintiff's Motion is continued to 7/14/26, 9am.

Plaintiff to file Order and to serve Defendant with Notice of Motion and hearing.

4. 9:00 AM CASE NUMBER: L24-01151

CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRISTOPHER WALSH

***HEARING ON MOTION IN RE: NOTICE OF MOTION FOR SET ASIDE JUDGMENT**

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to set aside a default judgment and dismiss the case without prejudice.

The Motion is not noticed and is unopposed, but there is no prejudice to Defendant.

Disposition

Motion is **granted**.

Case is dismissed without prejudice.

Plaintiff shall prepare and submit the Order.

5. 9:00 AM CASE NUMBER: L24-03699

CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON

***HEARING ON MOTION FOR DISCOVERY TO DEEM REQ FOR ADMISSIONS ADMITTED AND OF NONAPPEARANCE**

FILED BY: MERCURY CASUALTY COMPANY

TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff also sought fees in the amount of \$400, for attorney's fees (2 hours at \$200/hr), and \$60 for

filing fees.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court **grants** Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant is sanctioned in the amount of \$460.

Plaintiff shall prepare and submit the Order.

6. 9:00 AM CASE NUMBER: L24-03699

CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON

*HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQ FOR ADMISSION ADMITTED/NON APPEARANCE FILED BY PLN ON 1/21/26

FILED BY: MERCURY CASUALTY COMPANY

***TENTATIVE RULING**

Only one motion was scheduled for 4/21/26, and it was addressed above.

7. 9:00 AM CASE NUMBER: L24-06494

CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. NADINE LOGAN

*HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT 664.6